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TEMPORARY WORK - RELIGIOUS WORKER VISA



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TEMPORARY WORK - RELIGIOUS WORKER VISA

The UK Religious Worker Visa is for persons who want to support the activities of a UK religious institution by conducting religious work such as working in a religious order or undertaking non-pastoral work for a religious order, for no more than 2 years.

The Religious Worker visa is not a route to settlement, but Religious Workers can be joined by a dependent partner and children under the age of 18.

Ministers of Religion whose engagement in the UK will involve leading a congregation in performing rites, rituals and preaching the essentials of the creed should apply for a **Minister of Religion (T2) Visa** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/minister-of-religion-visa-t2/>) instead.

Requirements for a UK Religious Worker Visa

In order to qualify for a Temporary Work – Religious Worker Visa, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You have an offer of a job as a religious worker from a sponsor that holds a valid **Temporary Work – Religious Worker sponsor licence** (<https://www.gov.uk/government/publications/register-of-licensed-sponsors-workers>) (which requires a valid Certificate of Sponsorship for the role you wish to undertake);
- You genuinely intend, and are able, to undertake the role for which you are being sponsored and do not intend to undertake other employment;
- You satisfy a financial requirement;
- You have not had permission as a Religious Worker or **Charity Worker** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work->

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visas/**charity-worker-visa/**) in the previous 12 months (unless you were not in the UK throughout); (<https://www.google.co.uk>

(2) Your application does not fall for refusal under the general grounds for refusal of removal + chambers in

- You have provided a valid TB certificate, if required.

The exact requirements you will need to satisfy may vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Temporary Work – Religious Worker Visa application with one of our immigration barristers, contact our Religious Worker lawyers on 0203 617 9173 or complete our enquiry form below.

Religious Worker Certificate of Sponsorship (CoS) Requirement

In order to qualify for a Temporary Work – Religious Worker Visa you must have a valid Certificate of Sponsorship from a Home Office ‘A-rated’ licensed sponsor (unless you are applying for an extension to work for the same employer as in your previous grant of leave to remain). Your sponsor must be authorised by the Home Office to sponsor the job under the Religious Worker route.

The Certificate of Sponsorship must confirm that the role you intend to undertake meets the religious worker requirements (see further below) and, if your sponsor is a religious order, whether you are a member of the sponsor's order.

The Certificate of Sponsorship must have a start date of no more than 3 months before the application date and must not have been used in a previous application which was granted or refused. The Certificate will be valid for 3 months from the date it is assigned to you. If you apply for a Temporary Work – Religious Worker Visa after this date, your application may be rejected. The Certificate of Sponsorship must not have been withdrawn or cancelled since being assigned.

Religious Worker Visa Role and Activities

The Religious Worker Visa is available to individuals who are qualified to do the job of a Religious Worker.

Your role as a Religious Worker must involve performing religious duties within, or directed by, your sponsor's organisation to support the activities of the religious institution.

Your religious duties must not include work which falls under the role of a **Minister of Religion** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/minister-of-religion-visa-t2/>). This means that your core duties must not include leading a congregation in performing the rites and rituals of the faith and in preaching the essentials of the creed.

You will need to receive pay and conditions at least equal to those given to settled workers in the same role and your pay must comply with or be exempt from the National Minimum Wage. <https://www.google.co.uk/search?q=richmond+chambers+in>

Religious Worker Visa Resident Labour Consideration

If applying for entry clearance as a Religious Worker, your sponsor will need to confirm that the requirements of the resident labour consideration have been complied with in respect of your job.

In order to satisfy the resident labour consideration for a Religious Worker Visa application your sponsor will need to be able to confirm at least one of the following:

- your role is over and above the sponsor's normal staffing requirements and is not capable of being filled by an existing worker; or
- your role will involve living mainly within and being a member of a religious order, which is a lineage of communities or of people who live in some way set apart from society in accordance with their specific religious devotion; or
- they hold national records of all available individuals and can confirm that the records show that no suitable settled worker is available to fill the role; or
- a national recruitment search was undertaken, with the role advertised in accordance with the Immigration Rules for at least 28 days and no suitable settled worker was available to be recruited for the role.

Financial Requirement for a Religious Worker Visa

Unless you have been in the UK with a valid visa for at least 12 months or your sponsor agrees to cover your costs during your first month in the UK (and this is confirmed on your Certificate of Sponsorship) you will need to have at least £1,270 in your bank account, held for at least 28 days, ending not more than 31 days before the date of your Religious Worker Visa application.

English Language Requirement for a Religious Worker Visa

The Temporary Work – Religious Worker Visa has no English language requirement.

Duration of a UK Religious Worker Visa

If your Temporary Work – Religious Worker Visa application is successful you will be permitted to enter and remain in the UK for either 24 months or the period of the role as stated on your Certificate of Sponsorship plus 14 days before and after, whichever is shorter.

Conditions of Stay



If your application for a Temporary Work – Religious Worker Visa is approved you will be allowed to work in the role you are sponsored for. Supplementary employment will be permitted (up to 20 hours per week outside the hours of your main job, provided the second job is in the same sector at the same level as your main job or on the Skilled Worker shortage occupation list), as will study (for some courses you may need an Academic Technology Approval Scheme certificate). You will not be permitted to access public funds.

Extensions of Stay as a Religious Worker

If you make a successful application to extend your stay in the Religious Worker route you will be granted further leave to remain for a period of either the difference between the period you have already spent in the UK since your last grant of permission as a Religious Worker and 24 months or the period of the role as stated on your Certificate of Sponsorship plus 14 days after, whichever is shorter.

24 months is the maximum length of time that you will be permitted to be sponsored on the Religious Worker route.

Settlement as a Religious Worker

The Temporary Work – Religious Worker Visa is not a route to settlement. However, it may be possible to switch into another immigration route which can lead to indefinite leave to remain.

Switching into the Temporary Work – Religious Worker route

Switching into the Religious Worker route from within the UK is not permitted. Applicants must submit an application for a Religious Worker visa from overseas.

Applying for a UK Religious Worker Visa

If you are seeking entry clearance on the Temporary Work – Religious Worker Visa route, you must apply for and be granted a visa from outside of the UK. You must not have had permission on this route or the **Charity Worker route** (<https://immigrationbarrister.co.uk/personal-immigration/short-term-work-visas/charity-worker-visa/>) within the 12 months immediately before your application, unless you can prove that you were not in the UK at all during that period.

You must provide a valid tuberculosis certificate, if required.

The application fee for a Temporary Work – Religious Worker Visa is currently £244.

This application fee will be automatically reduced by £55 if you're from one of the following countries: [. \(https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers\)](https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers)
 Austria, Belgium, Croatia, Republic of Cyprus, Czech Republic, Denmark, Finland, France, Germany, Greece, Hungary, Iceland, Ireland, Italy, Latvia, Luxembourg, Malta, Netherlands, North Macedonia, Norway, Poland, Portugal, Slovakia, Spain, Sweden or Turkey.

UK Religious Worker Visa Processing Times

Most Temporary Work – Religious Worker Visa applications are decided within 3 weeks. It may be possible to secure a faster decision if the visa application centre offers a priority service.

Most applications from Religious Workers to extend their stay are decided within 8 weeks. You can also secure a decision within 5 days if you apply via the Priority Service or by the end of the next working day if you apply via the Super Priority Service.

Dependants

If you are granted entry clearance or leave to remain as a Religious Worker you can be joined or accompanied by a dependent partner and dependent children under the age of 18.

UK Visa Refusals

If your application for a Temporary Work – Religious Worker Visa is refused, you may be able to make a fresh application or apply for Administrative Review or Judicial Review of the refusal decision.

How Our Immigration Barristers Can Help

Our team of immigration barristers has experience in assisting religious workers and family members. Our barristers can help you to ensure that you meet your start date and that your career progression will fit your immigration goals.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to religious workers as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications for Minister of Religion (T2) Visas



Applications to enter the UK under alternative immigration routes [. \(https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers\)](https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers)

Fresh applications, Administrative Reviews and Judicial Review for Temporary Work - Religious Worker Visa migrants

WHAT CAN WE HELP YOU WITH?

To discuss your Temporary Work - Religious Worker Visa application with one of our immigration barristers, contact our Temporary Work - Religious Worker lawyers on 0203 617 9173 or complete our enquiry form below.

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By Dr. Catherine Taroni - Barrister Partner

19 Nov 2021

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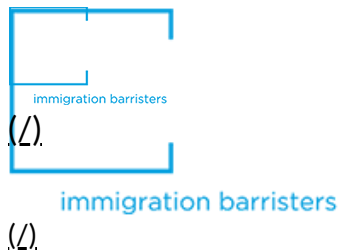
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